

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Barrett

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing remote participation at town meeting.

PETITION OF:

NAME:

Michael J. Barrett

DISTRICT/ADDRESS:

Third Middlesex

SENATE No.

By Mr. Barrett, a petition (accompanied by bill) (subject to Joint Rule 12) of Michael J. Barrett for legislation to authorize any town meeting to be held through remote participation or a hybrid of in-person and remote participation. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing remote participation at town meeting.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 39 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 10A the following section:

3 SECTION 10B.

4 (a) In a town having a representative or open town meeting form of government, the town
5 moderator may, in consultation with the select board and local public safety or public health
6 officials, call for any town meeting to be held through remote participation or a hybrid of in-
7 person and remote participation, including, but not limited to, by means of a video or telephone
8 conferencing platform. If a town does not have a moderator, the select board may call for any
9 town meeting to be held through remote participation or a hybrid of in-person and remote
10 participation in accordance with this paragraph.

11 (b) A notice of decision to hold town meeting through remote participation or a hybrid of
12 in-person and remote participation shall be prepared by the moderator and printed in a legible,

easily understandable format and shall contain: (i) the moderator's determination and request to hold a town meeting through remote participation or a hybrid of in-person and remote participation in accordance with this section; (ii) the video or telephone conferencing platform the moderator has determined to use to hold the town meeting; (iii) confirmation that the moderator has consulted with the local disability commission or coordinator for federal Americans with Disabilities Act compliance; (iv) confirmation that the moderator has consulted with the select board; and (v) a certification by the moderator that: (A) the moderator has tested the video or telephone conferencing platform; and (B) the platform satisfactorily enables the remote portion of the town meeting to be conducted in substantially the same manner as if the meeting occurred in person at a physical location and in accordance with the operational and functional requirements set forth in this section.

(c) A video or telephone conference platform used by a town meeting for remote participation under this section shall, at minimum:

(i) strictly limit voting at an open, remote, or hybrid town meeting to only those confirmed by the town clerk to be eligible to vote at that meeting, Each person deemed eligible to vote shall be provided with appropriate physical or technological participation credentials designed to allow remote participation of all eligible voters while also establishing regularity in administration, minimizing inaccurate results and creating and maintaining a virtual and physical environment free from fraud;

(ii) enable the moderator, voters, representative town meeting members, town officials and any other interested members of the public to identify and hear the moderator and each voter or other speaker recognized by the moderator, whether remotely or in person;

(iii) if applicable, determine whether a quorum is present;

(iv) enable a voter, town meeting member, town official or other individual authorized to participate in the meeting to request recognition by the moderator without prior authorization, consistent with any town meeting rules established by bylaw, charter or special act. To the extent technologically feasible, the request shall be visible or audible to the town meeting and the public in real time and upon review of the recording of the town meeting proceedings, preserved according to subsection (g);

(v) enable the moderator to determine when a remote or in person voter wishes to be recognized to speak, make a motion, raise a point of order or object to a request for unanimous consent;

(vi) enable the moderator to recognize a remote or in person voter, town official or other individual to speak and to enable that person to speak;

(vii) in the case of a representative town meeting, enable the moderator the ability to conduct a roll call vote;

(viii) enable any interested members of the public to access the meeting remotely for purposes of witnessing the deliberations and actions taken at the town meeting, subject to the provisions of any municipal charter; and

(ix) enable the town meeting to be recorded.

(d) (i) Registered voters, other than representatives elected or appointed in accordance with applicable state or local law, seeking to participate remotely in a representative town meeting shall, not less than 48 hours in advance, submit to the town moderator a request to

participate in the meeting. Upon receipt of the request and verification of the requester's voter registration status, the designated official shall provide appropriate physical or technological participation credentials; nothing herein shall be construed to require greater participation by voters or non-town meeting members than required by any applicable general or special law or municipal charter.

(ii) Eligible registered voters seeking to participate remotely in an open town meeting shall be provided with instructions, no later than 48 hours in advance, as to how to access appropriate physical or technological participation credentials; provided, however that the inability to comply with this subparagraph shall require that the meeting be delayed until a quorum is reached or 30 minutes has passed, whichever occurs later.

(e) Prior to taking up any business at a remote or hybrid town meeting, and following the determination of a quorum, if applicable, the meeting shall vote on whether to commence the business of the meeting using remote or hybrid access. If the town meeting votes to continue, then the town meeting shall proceed to hold a remote or hybrid meeting to address the articles in the warrant. If the town meeting votes not to conduct the town meeting by remote or hybrid means, then the town meeting shall be adjourned, without further action, to the date, time and place specified in the notice or warrant or to such other time, date and place as may be approved by town meeting.

(f) Votes taken by a roll call vote at a remote or hybrid representative town meeting shall be recorded and kept with the minutes of the town meeting.

(g) A remote or hybrid town meeting shall be recorded and the recording shall be preserved and made publicly available on the town's website for at least 90 days after the

78 dissolution of said town meeting and until the official minutes of the meeting have been prepared
79 by the town clerk.